

		The failure to appear through an attorney is a defect which may be corrected and not an absolute bar to jurisdiction. (<i>CLD, supra</i>, 120 Cal.App.4th 1141, 1149.) Thus, leave to amend is granted.
3	Garcia v. Di Paolo Whetmore, LLC 2026-01553753 Motion to Strike Portions of Complaint	Defendant Maria Di Paolo's Motion to Strike Portions of Complaint is DENIED. Defendant moves to strike Plaintiff's claim for punitive damages at paragraphs 39-44 of the Complaint and prayer for damages. Legal Standard: A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210.) "[A]conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 895-896.) Summary of Complaint: Plaintiff alleges Defendant was the owner of a German Shepherd that attacked Plaintiff while he was walking on a public sidewalk in Huntington Beach, injuring Plaintiff's hand. (Complaint, ¶¶ 5, 12-17.) Plaintiff alleges Defendant's dog had attacked another neighbor and their dog approximately two weeks earlier, yet Defendant failed to adequately train, restrain, neuter, and/or confine the dog. (Id. at ¶¶ 14, 20-26.) Plaintiff alleges claims for strict dog bite liability under Civil Code section 3342, negligence, and punitive damages.

		Application: Defendant contends Plaintiff's complaint does not meet the high standard for pleading punitive damages because there is no showing Defendant "intended to injure Plaintiff." (Motion, 5:9.) "At most, the Complaint alleges that Defendant Maria Di Paolo had prior notice of a risk and failed to take sufficient measures to restrain, supervise, confine, or control the dog. Those allegations may be relevant to negligence. They are not enough to transform an alleged failure to control a dog into conduct punishable by exemplary damages." (Id. at 5:14-17.) Plaintiff responds that Defendant's specific knowledge of the dog's dangerous propensity to attack others is sufficient to demonstrate malice based on a theory of conscious disregard for the safety of others. (Opp., p. 1.) At the pleading stage, Plaintiff has adequately alleged facts, including a recent prior attack by Defendant's dog and failure to take remedial action thereafter, which could show that "defendant was aware of the probable dangerous consequences of [her] conduct, and that [she] willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court, supra</i>, 24 Cal.3d at 895-896.) Therefore, the motion is denied.
4	Ally Bank v. Soto 2026-01545141 Application for Writ of Possession After Hearing	Plaintiff has filed an application for writ of possession under Code of Civil Procedure section 512.010 et seq., which allows Defendant to post a deposit and obtain wrongfully-detained property prior to trial if Plaintiff demonstrates the probable validity of their claim. However, Plaintiff has not filed a proof of service of either the Complaint or the present Application. Although such relief may be granted ex parte in specific cases where the property was feloniously taken or the property is a credit card (Code Civ. Proc. § 512.020(b), it generally requires service on the Defendant of the summons/complaint, notice of application/hearing, and a copy of the application and supporting affidavit. (Code Civ. Proc. § 512.030.) Here, Plaintiff hasn't filed a proof of service of any documents in this case on Defendant. Therefore, the application should be denied without prejudice. Plaintiff Ally Bank's Application for Writ of Possession is DENIED without prejudice.
5	James v. Thatcher 2025-01457604	The motion of attorney Ashkahn Mohamadi be relieved as for plaintiff Presley James is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as